

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MOSES DAMISA, *Complainant*

v.

TRANS ATLANTIC SHIPPING LLC, *Respondent*.

DOCKET NO. 1967(F)

Served: June 2, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER REQUIRING PROPOSED BRIEFING SCHEDULE

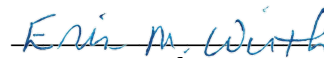
On May 28, 2021, the parties submitted their forth joint status report (“JSR 4”), as required by the order issued on May 3, 2021 (“Order JSR 4”). The parties state that they “have agreed to move forward with mediation” and “expect to have a conference call with the mediator next week to set a date and time for mediation.” JSR 4 at 1. The parties suggest filing another status report at the end of June. JSR 4 at 1.

The parties were advised that in “the next status report, the parties should report the specific schedule, including the deadline to complete discovery and to complete mediation.” Order JSR 4 at 1. The parties were further advised that “[o]ver four months have passed since this proceeding was filed and the discovery process should be concluding. The mediation should be scheduled and completed in the next month or two.” Order JSR 4 at 1.

Discovery should be completed and the mediation should be scheduled in June. The proceeding has been pending for six months and a briefing schedule will be issued in July, whether or not the mediation has occurred. If the parties wish to continue working with CADRS, they may, however, the proceeding here will move forward. The parties were previously warned that “any requests for extension of deadlines must be approved by the undersigned—the mediator and CADRS do not have the authority to extend deadlines in this proceeding.” Order JSR 4 at 1.

The parties should review the Order Designating Administrative Law Judge and Requiring Joint Status Report issued on January 21, 2021. The parties should include their proposed briefing schedule in their next joint status report. In their briefs, they should be prepared to address the five elements required to establish a 46 U.S.C § 41102(c) claim.

Accordingly, it is hereby **ORDERED** that the parties conclude discovery and mediation and file a joint status report with proposed briefing schedule on June 30, 2021.


Erin M. Wirth
Chief Administrative Law Judge